ANTI-CORRUPTION COMMISSION

COMMISSION MEETING FORM

MEETING NO.	23rd Commission Meeting
DATE:	6 Nov. 2018
TIME:	2:00 pm
VENUE:	Chairperson's Chamber

#	AGENDA	DECISIONS
1.	Objection by Finland and The Netherlands to the reservations on Article 66 (2) of UNCAC by Bhutan - LD *Reference to Ministry of Foreign Affairs' letter MFA/MD/ LTD-9(a)/2406 dated 26 October, 2018.* Late deposit of our reservation	Commission reviewed the recommendations of the Legal Division (note attached). Upon enquiry, the Director of Dept. of Multilateral Affairs, MoFA informed that there is no opportunity for negotiation with the Netherlands and Finland to consider/withdraw their objection as the permissible time period of one year, after the reservation was deposited on 25 April 2017, has lapsed. He also informed that PMB, New York had failed to register on the online automated notification system and hence was not aware of the objections raised and failed to notify the parties concerned for negotiation. Hence, the only options feasible were: a) To submit proposal to the Parliament to accept the Treaty in totality; or b) Denounce Bhutan's ratification of the Treaty and then re-accede with reservation on Article 66 (2). Commission's directive: i) To discuss further with UNODC and also review the provisions of UNCAC related to negotiation. May also seek UNODC's views on the implications in denouncing the accession. ii) Accordingly, Legal Division to report to the Commission for necessary way forward.

— absent — on leave
Commissioner

Commissioner

Chairperson